

Cross-border tax & social-security position

Discussion checklist for my tax adviser

My situation: US citizen; sole owner of a Dutch BV (Osterholm B.V.); municipal registration (BRP) and insurance in the Netherlands; currently physically present in Germany; delivering IT services to clients in DE / AT / NL, mostly remotely. The aim of this list is to confirm where I am taxed, to avoid an unintended permanent establishment or double taxation, and to keep the right documentation.

1 · Personal tax residency (fiscale woonplaats / steuerliche Ansässigkeit)

- Given that I am physically in Germany but my BRP registration and insurance are in the Netherlands, where am I personally tax-resident for 2025–2026?
- How do the 183-day test and the NL–DE double-tax treaty tie-breakers (permanent home, centre of vital interests) apply to me?

2 · Place of effective management of the BV (feitelijk leiding / Geschäftsleitung)

- Because I run Osterholm B.V. while physically in Germany, could the company be treated as (co-)managed from Germany, creating a German corporate-tax nexus or dual residence?
- What should I do to keep the BV's effective management clearly in the Netherlands?

3 · Permanent establishment (vaste inrichting / Betriebsstätte)

- Does working from a fixed place in Germany (incl. a home office) create a permanent establishment for the BV in Germany? What duration or fixity triggers it?

4 · VAT (btw / Umsatzsteuer)

- Confirm correct reverse-charge invoicing for B2B services to German clients (net invoice, § 13b note, both VAT IDs).
- Does my physical presence in Germany trigger any German VAT-registration obligation, or change the place of supply?

5 · Social security & insurance (EU Reg. 883/2004)

- I am insured in the Netherlands but physically in Germany — which country's social-security system applies, and is an A1 certificate appropriate or should coverage shift?
- Is my health-insurance arrangement compliant in both countries?

6 · US obligations (citizenship-based taxation)

- US filing as a citizen abroad: FBAR / FATCA, foreign earned income exclusion vs. foreign tax credit.
- US rules for a US person owning a foreign corporation — Form 5471 and possible GILTI on the BV — coordinated so NL / DE / US do not double-tax.

7 · Documentation to keep

- Signed service contracts (Dienst-/Werkvertrag), a day-by-day record of country of presence, place-of-work evidence, invoices with reverse-charge notes, and BV board/management records.

This is a personal preparation checklist of topics to raise with my adviser. It is general information, not tax or legal advice.